

		agree to the order or judgment to be entered therein for or against the ward or conservatee, and to satisfy any judgment or order in favor of the ward or conservatee or release or discharge any claim of the ward or conservatee pursuant to that compromise.” Based on this statute, the Court finds that it has the authority to approve the compromise between the parties here and that the Clerk’s rejection of Defendants’ filing was erroneous. Form MC-350 is attached as Exhibit B to the Declaration of Jeremy J. Alberts filed 9/11/26. It is properly verified and was served on Plaintiff by email. The previous deficiencies with the Motion having been remedied, the Motion to Approve Settlement is GRANTED. Moving party to give notice.
108	Curiel v. Nasim, 2024-01412811	MOTION FOR SUMMARY JUDGMENT/ADJUDICATION – TENTATIVE RULING FORTHCOMING
109	Elias v. Jensen, 2020-01139897	MOTION FOR STATEMENT OF DECISION – CONTINUED DUE TO STAY
110	Kienzle v. Universal Protection Service, 2026-01563623	MOTION TO COMPEL ARBITRATION – GRANTED Terry Kienzle sued his former employer, Defendant Universal Protection Service, dba Allied Universal Security Services for wrongful termination, wage and hour claims, and retaliation claims. Defendant filed a motion to compel arbitration. Defendant established the existence of an arbitration agreement between the parties. (Grzywacz Decl., ex. A.) The electronic signature on the arbitration agreement does not invalidate it, and the Grzywacz declaration properly authenticates the document. Plaintiff has not offered evidence to refute Defendant’s prima facie showing as to the authenticity of the arbitration

		agreement. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) The arbitration agreement applies to “all claims or cause of action that the Employee may have against the Company.” (Grzywacz Decl., Ex. A, p. 1.) Plaintiff does not argue that the claims in his complaint are not covered by this provision. Plaintiff has not established the arbitration agreement is unconscionable. No admissible evidence was offered that the agreement is a contract of adhesion. To the contrary, the agreement states twice that signing it was not a condition of employment. Plaintiff has also failed to show the agreement is substantively unconscionable. No authority is cited that an arbitration agreement is unconscionable because it covers claims against third parties. While the costs of arbitration may be unconscionable if they have an impact on an employee’s ability to vindicate statutory rights, under Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 118, this is sufficiently ameliorated by the employer’s agreement to pay all of the costs unique to arbitration. This includes the arbitration filing fee. Therefore, although the arbitration agreement says that some of the filing fee is to be paid by Plaintiff, as a condition of this order, Defendant shall pay the entirety of the initial arbitration fee.
111	Le v. CUIAB, 2026-01538470	CONTINUED, OSC RE DISMISSAL SET BY COURT
112	McGrew v. Heimbuch, 2025-01535253	MOTION TO SET ASIDE/VACATE DEFAULT – GRANTED MOTION FOR LEAVE TO FILE DEMURRER – GRANTED Defendant Jeff Heimbuch (“Defendant”) moves for an order setting aside default and granting him leave to file a demurrer to plaintiff Shannon McGrew’s (“Plaintiff”)